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Case Number: 25CHCV00742 Hearing Date: July 10, 2026 Dept: F43

Dept. F43

Hearing Date: 07-10-26

Case # 25CHCV00742, Preciado v. Le

Reve Salon De Paris, Inc.

Trial Date: None set.

MOTION TO STRIKE

MOVING PARTY: Defendant Le Reve Salon De Paris, Inc.

RESPONDING PARTY: Plaintiff Andrea Preciado

RELIEF REQUESTED

Order striking paragraph 28 and punitive damages (paragraphs 45 and 93 and Prayer for Relief paragraph 3) from the Third Amended Complaint.

RULING: Motion is granted in part and denied in part.

SUMMARY OF ACTION

Plaintiff Andrea Preciado (Plaintiff) filed

this wrongful termination action against defendant Le Reve Salon De Paris, Inc.

(Defendant) on February 7, 2025. After

several stipulations, Plaintiff filed her Third Amended Complaint against Defendant on March 19, 2026. Plaintiff asserts 11 causes of action: (1) retaliation; (2) failure to pay overtime wages (Labor Code, §§ 510, 1194, 1198); (3) failure to provide required meal periods (Labor Code, §§ 226.7, 510, 512, 1194, 1197); (4) failure to provide required rest periods (Labor Code, §§ 226.7, 512); (5) unlawful wage deduction (Labor Code, § 221); (6) failure to pay all wages due to discharged and quitting employees (Labor Code, §§ 201, 202, 203); (7) failure to maintain required records (Labor Code, § 226, IWC Wage Order No. 4-2001, § 7); (8) failure to furnish accurate itemized wage statements (Labor Code, § 226); (9) failure to permit inspection of personnel and payroll records (Labor Code, §§ 226, subd. (b), 1198.5); (10) wrongful termination in violation of public policy; and (11) Unfair and Unlawful Business Practices (Bus. & Prof. Code, §§ 17200, et seq.).

Defendant filed and served an answer on April 17, 2026 and an amended answer on May 4, 2026.

On April 20, 2026, Defendant filed the instant motion to strike paragraphs 28, 45, and 93 from the Third Amended Complaint. Plaintiff filed an opposition on June 24, 2026. No reply was filed.

MEET AND CONFER

Before filing a motion to strike, the parties must meet and confer “in person, by telephone, or by video conference,” and the moving party must file a “meet and confer” declaration discussing the outcome of the meeting. (Code Civ. Proc., § 435.5, subd. (a)(3); see also Department F43 Courtroom Information, p. 2 [“meet and confer” does not mean emails and letters].)

The “meet and confer” requirement is not met because defense counsel’s efforts consisted of sending plaintiff’s counsel a single email on April 15, 2026. (Declaration of Igor Harris ¶ 2.) Although plaintiff’s counsel never responded to the email, the moving papers do not indicate that defense counsel attempted to contact plaintiff’s counsel by phone or in person. However, the court still

considers the merits.

SUMMARY OF ARGUMENTS

Defendant contends the allegation concerning Andrew Francis and Gigi Francis making harassing and demeaning comments about Plaintiff's body and appearance are not connected to any causes of action. (FAC ¶ 28.) Plaintiff included the irrelevant allegation to provide a background for a punitive damages theory. Furthermore, Plaintiff fails to meet the specific pleading requirements for punitive damages. (FAC ¶¶ 45, 93.) Plaintiff relies on the irrelevant conduct alleged in paragraph 28, Andrew Francis's conduct does not amount to willful and conscious disregard, and the remaining conduct – the termination of Plaintiff's engagement on February 1, 2024, based on Defendant's position that business was slow – is conclusory and does not demonstrate malice, oppression, or fraud.

In opposition, Plaintiff contends paragraph 28 is not irrelevant because the demeaning comments demonstrate an unlawful motive by the same owner and manager who slashed Plaintiff's scheduled and fired her. This establishes hostility and animus that drove several adverse actions. Even if the court strikes paragraph 28, Plaintiff's other allegations establish "conscious disregard" for Plaintiff's rights.

THE THIRD AMENDED COMPLAINT'S ALLEGATIONS

Plaintiff was employed as a hairstylist at Defendant's Granada Hills salon from January 26, 2023, through February 1, 2024. (3AC ¶¶ 14-15.)

Although Plaintiff worked a full-time schedule of ten hours per day, Defendant classified her as an independent contractor per an agreement Plaintiff signed at the beginning of her employment. (3AC ¶¶ 15-16.) Plaintiff alleges Defendant misclassified her as an independent contractor because she was treated like an employee, exercising control over her work, (schedule, rate of pay, duties, work location, and the clients she was permitted to service). (Id. ¶¶ 16-22.) Moreover, Defendant's owner, Andrew Francis, and its manager, Gigi Francis, dictated Plaintiff's work schedule, required her to remain on the premises during assigned shifts, even when she had no clients,

and controlled the manner and means of her work. (Id. ¶¶ 17-20.)

Due to the misclassification, Defendant violated various wage and hour laws. (3AC ¶ 23.) Defendants did not compensate Plaintiff for overtime hours worked, unlawfully deducted Plaintiff's wages, did not provide Plaintiff with legally required meal periods, and did not provide Plaintiff with legally required rest periods. (Id. ¶¶ 23-27.) As a result, Defendant maintained inaccurate payroll records and did not include the earned meal and rest premiums and issue all wage statements to Plaintiff pursuant to Labor Code section 226, subdivision (a). (Id. ¶ 27.)

Throughout her employment, Plaintiff complained to Andrew Francis and Gigi Francis that she was owed wages and meal and rest period premiums. (3AC ¶¶ 29, 42.) In response to Plaintiff's complaints, Andrew Francis and Gigi Francis retaliated against Plaintiff by removing clients from her schedule, sharply reducing her income. (Id. ¶¶ 29, 43.)

Approximately six months into her employment, Defendant began unilaterally deducting additional amounts from Plaintiff's earned commissions, including product costs and percentage-based reductions, without Plaintiff's informed consent or a lawful written authorization. (3AC ¶¶ 30, 63.) Around that time, Defendants verbally proposed a revised commission structure and represented that commissions would be split fifty percent (50%) to Plaintiff and fifty percent (50%) to Defendants; that Defendants would then take an additional ten percent (10%) only from Defendants' own portion; and that any deduction for product costs would not reduce Plaintiff's take-home pay because prices would be increased. Plaintiff agreed only on the express condition that her earnings would not be reduced. Defendants never identified the exact percentage(s) or calculation used for these 'product costs' and 'shop costs' deductions, and the deductions operated to shift Defendants' ordinary business expenses onto Plaintiff by reducing commissions already earned and owed. (Id. ¶¶ 30-31, 64.)

Throughout her employment, Andrew and Gigi Francis subjected Plaintiff to harassing and demeaning comments about her appearance and body, telling her she looked "fat," asking if she was pregnant,

commenting “you look big,” criticizing her for not being “smiley” enough, and asking if she was on her period. (3AC ¶ 28.) Plaintiff claims this conduct was intended to humiliate and demean her. (Id.)

In December 2023, Plaintiff created a group chat with approximately eleven coworkers to discuss workplace rights, including wage theft, misclassification, and meal and rest breaks. (3AC ¶ 32.) When Andrew Francis and Gigi Francis learned about the group chat, Andrew Francis immediately presented Plaintiff and the participating employees with a new contract further reducing their compensation, telling them in substance, “if you don’t sign this new contract right now, then don’t come back tomorrow.” (Id. ¶¶ 33-34.) When employees questioned whether the terms were lawful, he responded, “it’s legal once you sign it.” (Id. ¶ 35.)

Plaintiff then began exercising her rights to take meal breaks and leave the premises when she had no scheduled clients. (3AC ¶ 36.) On or about February 1, 2024, approximately eight weeks after the group chat and Plaintiff’s protected activity, Gigi Francis terminated Plaintiff, falsely claiming business was “really slow” as the reason for termination. (Id. ¶ 37.) However, Plaintiff was fully booked with clients that same weekend and the following week. (Id. ¶ 37.) Plaintiff asserts the true reason was retaliation for her wage complaints, her participation in the group chat, and her exercise of her rights to meal breaks and to leave when she had no clients. (Id. ¶¶ 37, 90-91.) Furthermore, on February 14, 2024, Plaintiff sent Defendants a written request for a copy of her personnel files and payroll records. More than 30 days passed and Plaintiff has yet to receive those copies. (Id. ¶ 39.)

ANALYSIS

A. Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435.) A court may strike from the complaint any irrelevant, false, or improper matter. (Code Civ. Proc., § 436, subd. (a).)

The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subd. (b); *Greshko v. County of*

Los Angeles (1987) 194 Cal.App.3d 822, 830 [noting the court's inherent power to limit the focus of the proceedings to the issues framed by the remaining viable pleadings].) The court must read the factual allegations in the complaint as a whole and assume their truth. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

Defendant moves to strike the following from the Third Amended Complaint:

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Page 9, Paragraph 28;

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Page 13, Paragraph 45 in the First Cause of Action;

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Pages 22-23, Paragraph 93, in the Tenth Cause of Action; and

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Page 24, Prayer for Relief, line 8: "For punitive damages pursuant to California Labor Civil § 3294 and Labor Code § 98.6"

1. Paragraph 28 is irrelevant.

Defendant contends paragraph 28 should be stricken because it is irrelevant to Plaintiff's causes of action. In opposition, Plaintiff contends paragraph 28 is relevant to demonstrating elements of retaliation and wrongful termination, providing background information concerning the employer's hostility, and providing an unlawful motive.

An allegation is irrelevant if (1) it is not essential to a claim or defense, (2) "neither pertinent to nor supported by an otherwise sufficient claim or defense," and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 436, subd. (a); see also Code Civ. Proc., § 431.10, subds.

(b), (c) [“An ‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in Section 436.”].)

Plaintiff alleges Paragraph 28 in support of her First Cause of Action (retaliation) and Tenth Cause of Action (wrongful termination in violation of public policy). (3AC ¶¶ 45, 93.) Paragraph 28 states: “Throughout Plaintiff’s employment, ANDREW FRANCIS and GIGI FRANCIS subjected Plaintiff to harassing and demeaning comments about her appearance and body, including telling her she looked fat, asking if she was pregnant, commenting ‘you look big,’ criticizing her for not being ‘smiley’ enough, and asking if she was on her period. This conduct was intended to humiliate and demean Plaintiff.”

Labor Code section 98.6 “prohibit[s] an employer from discriminating and retaliating against an employee for filing a complaint or disclosing information about a safety violation.” (St. Myers v. Dignity Health (2019) 44 Cal.App.5th 301, 311.) The Plaintiff must establish three elements: (1) the employee or applicant engaged in a protected activity under the Labor Code; (2) the employer subjected the employee or applicant to an adverse employment action; and (3) the protected activity was a substantial motivating reason for the adverse action. (Lab. Code, § 98.6, subd. (b).)

Here, Plaintiff fails to explain how comments about her appearance relate to the retaliation claim. Although the comments came from Andrew Francis and Gigi Francis, Plaintiff fails to allege a connection between the “appearance” comments and her termination. Plaintiff claims the comments occurred throughout her employment rather than in response to her engagement in protected activity. Nor Plaintiff does not allege retaliation based on discrimination.

“The elements of a cause of action for wrongful discharge in violation of public policy are ‘(1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.’” (McDoniel v. Kavry Management, LLC (2025) 114 Cal.App.5th 949, 962, citations omitted.) “Violations of public policy generally fall into four categories: (1) termination for refusing to violate

a statute, (2) termination for performing a statutory obligation, (3) termination for exercising a statutory right or privilege, or (4) termination for reporting an alleged violation of a statute of public importance.” (Scott v. Phoenix Schools, Inc. (2009) 175 Cal.App.4th 702, 708.)

As with the retaliation claim, Plaintiff fails to allege a connection between her termination and the appearance comments. Plaintiff generally alleges Andrew Francis and Gigi Francis made inappropriate comments about Plaintiff’s appearance throughout her employment but fails to state any connection between the comments, Plaintiff complying with a statute or reporting a violation, and Plaintiff’s termination.

Therefore, the court grants Defendant’s motion to strike as to Paragraph 28 with leave to amend.

2. Plaintiff adequately alleges punitive damages.

A motion to strike punitive damages may lie where the alleged facts do not rise to the level of “malice, fraud, or oppression” required to support punitive damages. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

The court finds Plaintiff’s allegations concerning Andrew Francis and Gigi Francis are sufficient to support punitive damages.

To state a prima facie claim for punitive damages, a complaint must set forth specific facts demonstrating the elements stated in Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721; see also Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

Malice is “conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id. at p. 725; Civ. Code, § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact

known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd.

(c)(3).) “Malice and oppression may be inferred from the circumstances of a defendant’s conduct.” (J. R. Norton Co. v. General Teamsters, Warehousemen & Helpers Union, Local 890 (1989) 208 Cal.App.3d 430, 444.)

Conclusory statements characterizing a defendant’s conduct as intentional, willful, and fraudulent are insufficient to plead fraud or malice. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) The complaint must state “specific facts showing that defendant’s conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff’s property or reputation).” (Croskey, et al., Cal.

Prac. Guide: Insurance Litigation Ch. 13-C (Thomson Reuters, 2016) ¶ 13:197.2; see Anschutz Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643 [allegations that defendant’s conduct was “intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff’s rights” did not satisfy specific pleading requirements].) A complaint must plead ultimate facts to support punitive damages. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255; Antelope Valley Groundwater Cases (2020) 59 Cal.App.5th 241, 265 [“[T]he term ‘ultimate fact’ generally refers to a core fact, such as an essential element of a claim.”].)

“A corporation may be held liable for punitive damages for the acts of its agents and employees when the act is motivated by actual malice or done under circumstances amounting to oppression, providing that the act is done with the knowledge or under the direction of corporate officials having power to bind the corporation.” (J. R. Norton Co., supra, 208 Cal.App.3d at p. 445; see also College Hosp., Inc., supra, 8 Cal.4th at p. 726 [“Corporate ratification in the punitive damages context requires actual knowledge of the conduct and its outrageous nature.”].) A corporation may also be held liable for punitive damages for the acts of specific agents or employees if the specific agent was an officer, director, other managing agent, acting on behalf of the corporation.

Ignoring the allegation concerning Plaintiff's appearance, Plaintiff adequately alleges Andrew Francis, Defendant's owner, and Gigi Francis, Defendant's manager, engaged in conduct despicable conduct which showed a conscious disregard for Plaintiff's rights as an employee.

Both Francis parties controlled the manner in which Plaintiff worked, including her work schedule and requiring Plaintiff to remain on the premises during assigned shifts.

(3AC ¶¶ 17-20.) In response to Plaintiff's concerns about owed wages and meal and rest period premiums, Gigi and Andrew Francis cut her hours and reduced her income. (Id. ¶¶ 29, 42-43.) Defendant deducted additional amounts from Plaintiff's commissions without her consent or written authorization. (Id. ¶¶ 30-31, 63-64.) When Andrew and Gigi Francis learned about an employee group chat discussing wage and other employee issues, Andrew presented Plaintiff with a new contract further reducing her compensation and represented that "if you don't sign this new contract right now, then don't come back tomorrow." (Id. ¶¶ 33-34.) When employees questioned whether the terms were lawful, he responded, "it's legal once you sign it." (Id. ¶ 35.) This demonstrates retaliatory conduct intended to punish Plaintiff for exercising her rights as an employee by reducing her income. When Plaintiff exercised her employee rights by taking meal and rest breaks, Gigi Francis terminated her employment, claiming the termination was due to business being "really slow" even though Plaintiff was fully booked with clients that same week and the following weekend. (Id. ¶¶ 36-37.) Defendant has failed to provide Plaintiff with a copy of her personnel files and payroll records. (3AC ¶ 39.) The alleged retaliatory conduct demonstrates a conscious disregard for Plaintiff's rights as an employee (taking meal and rest breaks) and prevented Plaintiff from earning income from client she had already booked.

Such allegations demonstrate a pattern of intentional and despicable conduct showing a conscious disregard for Plaintiff's rights as an employee directly in response to Plaintiff exercising her rights.

Therefore, the court denies Defendant's motion to strike punitive damages from the Third Amended Complaint.

CONCLUSION and ORDER

Motion is granted in part as to paragraph 28
and denied in part as to paragraphs 45 and 93.

The court strikes the following from the
Third Amended Complaint:

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Page 9, Paragraph 28

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Page 13, Paragraph 45, line 7: "the
harassment of Plaintiff through demeaning comments about her appearance"

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Page 22, Paragraph 93, line 24: "the
harassment of Plaintiff through demeaning comments about her appearance"

Plaintiff may file an amended complaint
within twenty (20) days of this order.

Defendant to give notice.